

Digital Evidence under the Bharatiya Sakshya Adhiniyam, 2023: Are Indian Courts Ready for the Digital Age?

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Abstract

The digitisation of communication, commerce and everyday life has transformed the nature of evidence before Indian courts. Mobile phones, emails, social-media communications, call records, CCTV footage and cloud storage now occupy a central place in litigation and criminal investigation. The Bharatiya Sakshya Adhiniyam, 2023 (“BSA”) responds to this shift through Sections 61, 62 and 63, which recognise electronic records and prescribe the conditions of their admissibility.

This article critically examines that framework and argues that **India is legally prepared for the digital age but institutionally still developing**. The argument is developed through four indicators of readiness – legal, institutional, technological and constitutional – rather than through a restatement of the statute alone. The article traces the certificate mechanism under Section 63(4) and its jurisprudential lineage from *Anvar P.V. v P.K. Basheer*¹ through *Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal*² to recent decisions under the BSA regime, including *Chandrabhan Sudam Sanap v State of Maharashtra*³, *Kailas Bajirao Pawar v State of Maharashtra*⁴ and the Supreme Court's 2026 ruling upholding the constitutionality of the hash-value and dual-signatory requirements in *Pune Bar Association v Union of India*⁵. It also examines primary and secondary digital evidence, the role of digital forensics, and the practical obstacles – authenticity, chain of custody, attribution, encryption, cloud jurisdiction and AI-generated content – that statutory recognition alone cannot resolve. The article concludes with reforms aimed at closing the gap between legal recognition and institutional capacity.

Keywords

Digital Evidence; Bharatiya Sakshya Adhiniyam, 2023; Electronic Records; Admissibility; Section 63; Digital Forensics; Institutional Readiness; Indian Judiciary.

¹Anvar P.V. v P.K. Basheer (2014) 10 SCC 473.

²Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal (2020) 7 SCC 1.

³Chandrabhan Sudam Sanap v State of Maharashtra, 2025 INSC 116 (Criminal Appeal No. 879 of 2019, decided 28 January 2025).

⁴Kailas Bajirao Pawar v State of Maharashtra, 2025 INSC 1117.

⁵Pune Bar Association v Union of India, Writ Petition (Civil) No. 599 of 2026, Supreme Court of India, order dated 27 May 2026.

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1. Introduction

Legal proceedings are no longer confined to physical documents and oral testimony. Emails, instant messages, call-detail records, CCTV footage and cloud-based information now form an ordinary part of litigation and investigation. Indian evidence law responded first through Sections 65A and 65B of the Indian Evidence Act, 1872⁶, and through the Supreme Court's decisions in *Anvar*⁷ and *Arjun Panditrao Khotkar*⁸, which established that a statutory certificate was a condition precedent for the admissibility of secondary electronic evidence because such evidence is particularly susceptible to alteration and fabrication.

The Bharatiya Sakshya Adhiniyam, 2023 carries this framework forward. Section 61 provides that an electronic or digital record cannot be denied admissibility merely because it is electronic, and gives it the same legal effect as other documents, subject to Section 63⁹. Section 62 directs that the contents of an electronic record be proved in accordance with Section 63¹⁰.

⁶Indian Evidence Act 1872, ss 65A-65B (repealed and replaced by the Bharatiya Sakshya Adhiniyam 2023 with effect from 1 July 2024).

⁷*ibid* (n 1).

⁸*ibid* (n 2).

⁹Bharatiya Sakshya Adhiniyam 2023, s 61.

¹⁰Bharatiya Sakshya Adhiniyam 2023, s 62.

Section 63 itself prescribes the conditions – including the certificate under Section 63(4) – under which computer output becomes admissible without production of the original¹¹.

Statutory recognition, however, does not by itself resolve the practical difficulties of digital evidence: information can be altered, deleted or duplicated without visible trace, and questions of source, integrity, chain of custody and forensic reliability remain live even after a certificate is produced. This article therefore asks a narrower and more useful question than whether Indian law recognises digital evidence – it plainly does. The question is whether India's legal, institutional, technological and constitutional infrastructure is equipped to make that recognition operationally reliable.

The article's central proposition, developed across the sections that follow and returned to directly in Part 10, is that **India is legally prepared but institutionally still developing**. Part 2 defines digital evidence and its distinguishing features. Part 3 traces the evolution from Sections 65A-65B to Section 63. Parts 4 to 6 examine the BSA framework, the certificate requirement and the primary-secondary distinction, including a statutory comparison table. Part 7 consolidates the case law, adding recent BSA-era authority. Parts 8 and 9 examine practical challenges and the role of forensics. Part 10 applies the four-indicator readiness framework, and Part 11 proposes reforms.

2. Understanding Digital Evidence

Digital evidence is information with evidentiary value that is created, stored, processed or transmitted in digital form – emails, messages, social-media posts, photographs, recordings, CCTV footage, call-detail records, location data, browser history and metadata. It may exist simultaneously across several devices and systems: a message sent through a mobile application can generate corresponding data on the sender's device, the recipient's device and an associated server, and a digital photograph carries metadata about its creation and modification that is not visible in the image itself. Its evidentiary value therefore cannot always be assessed merely by examining what is visible on a screen.

A further distinction, developed later in Part 6, is between the physical device that stores information and the information itself: a mobile phone is a medium, while the messages, files

¹¹Bharatiya Sakshya Adhiniyam 2023, s 63.

and recordings held on it are the electronic material whose extraction, preservation and authentication the court must ultimately assess.

Sections 61 and 62 of the BSA incorporate this material into the statutory framework of documentary evidence¹²¹³, but recognition of a digital record's existence is not the same as establishing its reliability. Because digital information can be copied without visible degradation, modified through software, or reconstructed after deletion, the central evidentiary concerns – authenticity, integrity, source identification and chain of custody – are addressed not by Section 61's general recognition but by the conditions of proof in Section 63, discussed in Part 4.

3. Evolution of Electronic Evidence in Indian Law

3.1 The Position under the Indian Evidence Act, 1872

Sections 65A and 65B of the Indian Evidence Act¹⁴ created a special mechanism for proving electronic records: Section 65A stated that such contents were to be proved in accordance with Section 65B, which prescribed the conditions for admitting computer output. Early judicial approaches differed on whether the general law of secondary evidence could be relied upon instead of Section 65B – an uncertainty substantially resolved in *Anvar*¹⁵.

3.2 Anvar P.V. v P.K. Basheer

In *Anvar*¹⁶, a three-judge Bench held that electronic records tendered as secondary evidence were governed exclusively by Section 65B and could not be admitted by resort to the general provisions on secondary evidence. The certificate was treated as an important safeguard of source and authenticity, and the judgment established that technological convenience could not substitute statutory compliance where the law prescribed a specific mode of proof.

3.3 Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal

¹²ibid (n 9).

¹³ibid (n 10).

¹⁴ibid (n 6).

¹⁵ibid (n 1).

¹⁶ibid (n 1).

A three-judge Bench in *Arjun Panditrao Khotkar*¹⁷ reaffirmed *Anvar*¹⁸ and overruled the more permissive approach taken in *Shafhi Mohammad v State of Himachal Pradesh*¹⁹, holding that the certificate is a condition precedent to admissibility wherever Section 65B applies, while recognising a limited exception where the record is in the possession of a person who cannot be compelled to produce it. The Court explained that the requirement exists because electronic records may pass through several devices and persons between creation and production in court, making a documented account of that passage a necessary safeguard rather than a formality.

3.4 From Section 65B to Section 63 of the BSA

The BSA carries this scheme forward with two structural changes: Section 63(3) treats interconnected computers and communication devices used for a common activity as a single system for certification purposes²⁰, and Section 63(4) adds a hash-value disclosure requirement and a dual-signatory certificate – the device custodian and a qualified expert – in place of the single signatory required under the former Section 65B(4)²¹. The transition is consequently more than a renumbering exercise: it retains the jurisprudential core of *Anvar*²² and *Arjun Panditrao Khotkar*²³ while responding to technical concerns – particularly around tamper-evidence – that had emerged in the decade since 65B was first litigated.

4. Digital Evidence under the Bharatiya Sakshya Adhiniyam, 2023

4.1 Section 61 — Electronic or Digital Record

Section 61 adopts a technology-neutral approach: a record is not denied admissibility merely because it is electronic, and is given the same legal effect as other documents, subject to Section 63²⁴. Recognition and admissibility remain distinct – Section 61 establishes that electronic

¹⁷ibid (n 2).

¹⁸ibid (n 1).

¹⁹*Shafhi Mohammad v State of Himachal Pradesh* (2018) 2 SCC 801, overruled on this point in *Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal* (2020) 7 SCC 1.

²⁰*Bharatiya Sakshya Adhiniyam* 2023, s 63(3).

²¹*Bharatiya Sakshya Adhiniyam* 2023, s 63(4) and the Schedule thereto.

²²ibid (n 1).

²³ibid (n 2).

²⁴ibid (n 9).

records are capable of being evidence; Section 63 prescribes the conditions on which particular records may actually be admitted.

4.2 Section 62 — Proof of Contents

Section 62 connects that general recognition to the specific method of proof: the contents of an electronic record are to be proved in accordance with Section 63²⁵, reflecting the reality that digital information is generated and stored through interconnected systems whose circumstances of creation, storage and reproduction often bear directly on what the record can be taken to show.

4.3 Section 63 — Conditions of Admissibility

Section 63 is the operative provision. It deems computer output – information printed, stored, recorded or copied through a computer or communication device – to be a document, admissible without production of the original, provided the conditions in Section 63(2) are satisfied²⁶²⁷. Those conditions concern the regular use of the relevant system, the ordinary course of information being fed into it, its proper functioning, and the correspondence between the output produced and the information originally supplied. The reliability of a CCTV recording or an electronic communication therefore cannot be assessed from its final output alone; the circumstances of its generation and preservation are equally material.

4.4 The Certificate as Evidentiary Safeguard, not an End in Itself

Section 63(4) requires a certificate identifying the record, describing its manner of production, and – since the BSA's amendment of the older single-signatory model – disclosing the record's hash value and bearing the signatures of both the device custodian and an expert²⁸. This mechanism is examined in detail in Part 5, where its purpose, practical difficulties and limits are addressed together rather than repeated across later sections; Parts 6 to 9 build on that single treatment rather than restating it.

5. The Certificate Requirement under Section 63

²⁵ibid (n 10).

²⁶ibid (n 11).

²⁷Bharatiya Sakshya Adhiniyam 2023, s 63(2).

²⁸ibid (n 21).

Section 63(4) requires that a certificate accompany the electronic record each time it is tendered in evidence, identifying the record, describing the manner of its production, and providing particulars of the device involved where relevant to establishing that it falls within Section 63(3)²⁹³⁰. The certificate must purport to be signed by the person in charge of the relevant device and by an expert, and it constitutes evidence of the matters it states, which may be given to the best of the signatory's knowledge and belief.

5.1 Purpose

Digital information typically passes through several interconnected devices and systems before reaching the courtroom. Section 63(3) accommodates this by treating computers and communication devices used together for a relevant activity as a single system³¹, so that the certificate can meaningfully connect the material placed before the court with the technological process that produced it, rather than being confined to a single physical machine.

5.2 Practical Difficulties in Obtaining the Certificate

Difficulties arise where the underlying system is controlled by an intermediary outside the court's jurisdiction, where forensic extraction involves several custodians whose roles must each be described accurately, or where the person with lawful control of a device lacks the technical knowledge to explain how a record was generated – a gap the dual-signatory requirement is designed to address, though its effectiveness still depends on the availability of persons with the necessary competence.

The Supreme Court confronted the constitutionality of this dual-signatory, hash-value regime directly in *Pune Bar Association*³², where a bar association argued that Section 63(4) imposed an unduly onerous burden on ordinary litigants by requiring both a hash-value disclosure and an expert's signature. The Court upheld the provision, treating the hash value as a reliable technical safeguard against tampering rather than an unreasonable procedural hurdle, and – addressing a related conflict with a Madras High Court ruling that had confined the expert signatory to persons notified under Section 79A of the Information Technology Act, 2000 – held that suitably qualified private individuals may also sign the certificate. The decision

²⁹ibid (n 21).

³⁰ibid (n 20).

³¹ibid (n 20).

³²ibid (n 5).

confirms that the certificate's demands, while real, are constitutionally proportionate to the reliability they are meant to secure.

5.3 A Safeguard, not a Substitute for Scrutiny

The certificate should be understood as one component of a broader evidentiary process rather than a substitute for forensic and judicial scrutiny. A technically compliant certificate establishes the matters Section 63 requires, but questions of authenticity, attribution and integrity may remain: it may establish how a file was extracted from a device without establishing who created the underlying communication, or how a CCTV recording was produced without resolving whether the footage is complete or has been altered afterward. Editing software and generative artificial intelligence sharpen this limitation, since increasingly sophisticated manipulation is not something a certificate addressed to production and device particulars is designed to detect. Where authenticity is seriously disputed, courts may need forensic examination, metadata analysis, hash comparison and expert testimony in addition to the certificate – a point developed further in Part 9 and applied to specific evidentiary categories in Part 6.

This limitation is not merely theoretical. In *Sanap*³³, the Supreme Court set aside a conviction and death sentence because the prosecution had failed to furnish the required certificate for CCTV footage said to establish that the accused was last seen with the deceased; the Court declined to place any reliance on that footage and eschewed it from consideration entirely. The case illustrates both the certificate's evidentiary weight and the cost of institutional failure to secure it – a theme returned to in Part 10.2.

6. Primary and Secondary Digital Evidence

The traditional distinction between primary and secondary evidence applies less neatly to digital records than to physical documents. Digital information can exist simultaneously across multiple devices and servers, and identical copies can be generated without the deterioration that ordinarily distinguishes an original from a reproduction.

6.1 Primary Digital Evidence

³³ibid (n 3).

Identifying an “original” in the digital context is not always straightforward: information stored on a mobile phone may be simultaneously accessible through another authorised device or a server, and the underlying data may require forensic methods to access rather than simple production. This creates a distinction, developed further below, between the device containing the data and the digital information itself.

6.2 Secondary Digital Evidence

Secondary digital evidence typically includes screenshots of conversations, printouts of emails, copies of CCTV recordings, exported chat histories, copied files and forensically reproduced data. Such material is often indispensable where direct access to the underlying system is impractical, but its ease of reproduction raises the separate question of whether the copy accurately represents the source.

6.3 Beyond “Original versus Copy”

Because a digital file can often be duplicated without visible deterioration, the more useful question in most cases is not whether material is technically an “original” or a “copy,” but whether it is *authentic, complete and reliably connected to its claimed source* – a question that shifts attention to metadata, system logs, hash values, preservation methods and chain of custody rather than to the primary-secondary label itself.

6.4 A Statutory Comparison

The statutory bridge between traditional and digital evidentiary concepts under the BSA can be summarised as follows:

Concept	Traditional Evidence	Digital Evidence under the BSA
Original / primary evidence	The physical original document itself.	Depends on the digital record and system – the “original” may be data held within a technological system rather than a single retrievable artefact (s 61) ³⁴ .
Copy / secondary evidence	A reproduced or certified copy of a document.	Screenshots, printouts, exported chats and forensically extracted or copied data (s 62) ³⁵ .

³⁴ibid (n 9).

³⁵ibid (n 10).

Concept	Traditional Evidence	Digital Evidence under the BSA
Authentication	Conventional proof of execution, handwriting or attestation.	Source, integrity, device/system functioning, and metadata, assessed against the conditions in s 63(2) ³⁶ .
Certificate	Not universally applicable to physical documents.	Mandatory dual-signatory, hash-value certificate under the s 63(4) ³⁷ framework, upheld in <i>Pune Bar Association v Union of India</i> ³⁸ .

6.5 Screenshots, Printouts and Forensic Copies

Screenshots and printouts illustrate the practical stakes of this comparison. A screenshot may display a conversation without establishing who generated it, whether it is complete, or whether it has been altered, and a printout strips away metadata, timestamps and other technical characteristics that may bear on reliability. Neither should be treated as automatically equivalent to the underlying electronic record; each must still satisfy the statutory conditions applicable to that record. Forensic copies stand on a different footing where acquisition is properly documented, since a well-maintained chain of custody connects the extracted material back to the original device – a process examined in detail in Part 9.2.

6.6 The Appropriate Evidentiary Chain

The more appropriate frame for evaluating any of this material is therefore the entire evidentiary chain – *source* → *acquisition* → *preservation* → *extraction* → *authentication* → *presentation* – evaluated through a combination of legal admissibility, technical authenticity and evidentiary reliability, rather than through the physical-document idea of an “original” alone. This framing recurs in Part 8's treatment of authenticity and Part 9's treatment of forensic method.

7. Judicial Approach to Digital Evidence

The principles traced in Part 3 continue to shape the application of Section 63, and recent decisions confirm both the continuity of that jurisprudence and its extension into the BSA regime.

³⁶ibid (n 27).

³⁷ibid (n 21).

³⁸ibid (n 5).

7.1 Continuity: Anvar and Arjun Panditrao

*Anvar*³⁹ established that Section 65B (and now Section 63) is a special statutory mode of proof that cannot be bypassed by resort to the general law of secondary evidence, while *Arjun Panditrao Khotkar*⁴⁰ confirmed that the certificate is a condition precedent to admissibility and clarified that this requirement operates differently where the original electronic record itself, rather than computer output derived from it, is produced before the court. Together the decisions established that electronic-evidence law is concerned not only with whether information is digital, but with *how that information reaches the courtroom*.

7.2 Recent BSA-Era Authority

Three recent decisions extend this jurisprudence into the BSA period. In *Sanap*⁴¹ the Supreme Court, on 28 January 2025, acquitted a death-row appellant after finding that CCTV footage relied upon to place him with the deceased could not be relied upon at all in the absence of the required certificate – a direct application of the *Anvar*⁴² principle with severe consequences for institutional non-compliance. In *Pawar*⁴³ the Court addressed the proof of a compact disc as an electronic record, holding that video evidence satisfying Section 63 is admissible without a written transcript and that the court may view and interpret it directly, while cautioning that merely playing a disc in open court does not by itself amount to legally proving its contents – the relevant witness and evidentiary procedure remain necessary. Most significantly, in *Pune Bar Association*⁴⁴ the Court upheld the constitutionality of the hash-value and dual-signatory requirements introduced by Section 63(4), confirming that these are proportionate safeguards rather than an unreasonable burden, and clarified that certificate-signing expertise is not confined to government-notified examiners.

7.3 Admissibility versus Probative Value

This body of jurisprudence also distinguishes admissibility from probative value. A certificate satisfies the threshold requirement for admission, but questions of authorship, attribution, completeness and manipulation may remain live even after that threshold is crossed – a properly certified communication may still require further evidence of who authored it, and a

³⁹ibid (n 1).

⁴⁰ibid (n 2).

⁴¹ibid (n 3).

⁴²ibid (n 1).

⁴³ibid (n 4).

⁴⁴ibid (n 5).

properly certified CCTV recording may still require evidence establishing that the footage is complete and that the persons depicted have been correctly identified. Statutory compliance is therefore necessary but not sufficient, which is precisely why Part 9 treats forensic method as a distinct and necessary complement to certification rather than a redundant safeguard.

8. Challenges in Admitting Digital Evidence

The difficulties that follow are not resolved by Section 63 itself⁴⁵; they concern the circumstances in which evidence is created, collected, preserved and examined before it ever reaches the certificate stage.

8.1 Chain of Custody and Attribution

A reliable chain of custody establishes who acquired evidence, when, how it was preserved, who accessed it, what forensic processes were undertaken, and how the material finally presented relates to its source. Because certification cannot retrospectively repair an evidentiary trail that was compromised before it began, the discipline of preservation must start at the point of seizure, not at the point of certification.

Establishing that a record is genuine is also not the same as establishing who created it. A message sent from a particular number does not by itself establish who operated the device at the relevant time, and a social-media account associated with one individual may in fact have been accessed by another. Digital evidence therefore raises two distinct questions – is the record genuine, and can it reliably be attributed to the person alleged to have created it – and the second question is frequently the more contested one in criminal proceedings.

8.2 Metadata, Encryption and Cloud Jurisdiction

Metadata concerning creation, modification, transmission or location can situate a record in time and place, but it is frequently stripped away when information is copied, converted or exported – a screenshot, for instance, typically preserves visible content while excluding the technical information attached to the underlying record. Encryption, while important for privacy and cybersecurity, can equally frustrate lawful acquisition, and information distributed across cloud systems in other jurisdictions raises questions of cooperation and procedure that are not primarily technological but legal. None of these problems is solved by the certificate

⁴⁵ibid (n 11).

mechanism; each requires its own investigative and, where necessary, cross-border legal response.

8.3 Deepfakes and the Limits of Visual Verification

Generative artificial intelligence has created a category of risk that conventional authentication was not designed for: a deepfake recording can appear highly persuasive while depicting an event that never occurred, so that visual or auditory plausibility is no longer a reliable proxy for genuineness. This is the sharpest illustration of the point made in Part 5.3 – a certificate addressed to the manner of a record's production says nothing about whether the content it certifies was itself synthetically generated, and courts confronting such evidence will increasingly depend on forensic examiners capable of identifying technical indicators of manipulation, discussed in Part 9.9.

8.4 Volume, Privacy and Proportionality

Modern devices can contain years of communications, location history and financial information, only a fraction of which bears on a given investigation. The resulting practical difficulty – identifying relevant material within an enormous corpus – is compounded by a constitutional one: an investigation that reaches indiscriminately into a device's full contents risks disproportionate intrusion into privacy unconnected with the alleged offence. This tension between investigative utility and constitutional restraint is addressed directly in Part 10.4, since it cannot be resolved by forensic technique alone.

9. Role of Digital Forensics and Expert Evidence

Digital forensics is the systematic process of identifying, acquiring, preserving, examining and analysing information from digital devices for use in investigation or litigation. Because the evidentiary significance of a record is often not apparent from its visible content alone, forensic examination is the technical process through which the legal safeguards of Part 5 and Part 8 are actually given effect.

9.1 Acquisition, Hashing and Chain of Custody

Because ordinary use of a device can itself alter certain data, investigators typically create a forensic image to preserve the original source while examination proceeds on the copy. Hash

values – now a statutory element of the Section 63(4) certificate⁴⁶ – allow a copy to be compared against its source at different stages to confirm that no alteration has occurred. Hashing, however, demonstrates consistency between a copy and the data from which it was derived; it does not establish that the underlying information is true or that a particular individual created it. It is properly understood as an *integrity safeguard*, not a complete method of authentication, and its statutory recognition is precisely what the Court in *Pune Bar Association*⁴⁷ treated as a proportionate, technically sound addition to the certificate regime.

9.2 Expert Evidence and its Limits

A digital forensic expert may explain how data was extracted, the integrity of a forensic image, the significance of particular metadata, or whether technical indicators suggest alteration. That opinion assists rather than replaces the judicial function: courts must still examine the methodology employed, the material examined and the reasoning supporting the expert's conclusion – not merely the conclusion itself – particularly where opposing experts disagree. Independence and transparency of methodology are especially important where the forensic examination is conducted by an agency directly involved in the investigation.

9.3 Digital Forensics in the Age of Artificial Intelligence

AI-generated or AI-manipulated content is increasingly difficult to distinguish from genuine recordings through ordinary examination, and forensic methodology must therefore evolve alongside the technology it examines. No single detection technique should be treated as infallible; the legal system's response, examined in Part 10.5, has to be institutional and continuing rather than a one-time technical fix.

The relationship between forensic method and Section 63 is best summarised in a single proposition: the certificate establishes the statutory matters Section 63 requires, while forensic examination provides the additional technical basis for integrity and authenticity where these are genuinely in dispute. Neither substitutes for the other.

10. Are Indian Courts Ready for the Digital Age?

⁴⁶ibid (n 21).

⁴⁷ibid (n 5).

The preceding sections show that the BSA provides a coherent legal architecture and that the judiciary – from *Anvar*⁴⁸ through *Pune Bar Association*⁴⁹ – has engaged substantively with its technical demands. But readiness is broader than legal recognition; it requires the capacity to collect, preserve, authenticate and evaluate digital evidence reliably across the entire justice system. This Part evaluates that capacity against four indicators.

10.1 Legal Readiness

Legal readiness is the strongest of the four indicators. Sections 61 to 63⁵⁰⁵¹⁵² provide a structured, technology-neutral framework; the certificate mechanism has been tested and refined through *Anvar*⁵³, *Arjun Panditrao Khotkar*⁵⁴ and, most recently, upheld against constitutional challenge in *Pune Bar Association*⁵⁵. On this indicator alone, India compares favourably with many common-law jurisdictions still relying on general secondary-evidence rules for digital material.

10.2 Institutional Readiness

Institutional readiness lags behind. Digital evidence requires forensic laboratories, trained investigators, and judges and prosecutors familiar with the technical concepts a certificate presupposes. *Sanap*⁵⁶ is the clearest illustration: the legal framework existed, the principle in *Anvar*⁵⁷ was settled law by the time of trial, and the evidence was still lost to the prosecution because the certificate was never obtained. The gap in that case was not statutory but institutional – a failure of practice rather than of law – and it is precisely this gap that recurs across investigation, prosecution and adjudication wherever forensic capacity, training or coordination is uneven.

10.3 Technological Readiness

⁴⁸*ibid* (n 1).

⁴⁹*ibid* (n 5).

⁵⁰*ibid* (n 9).

⁵¹*ibid* (n 10).

⁵²*ibid* (n 11).

⁵³*ibid* (n 1).

⁵⁴*ibid* (n 2).

⁵⁵*ibid* (n 5).

⁵⁶*ibid* (n 3).

⁵⁷*ibid* (n 1).

Technological readiness must keep pace with rapidly evolving forms of evidence – encrypted communications, cloud-based records, biometric systems and, most urgently, deepfakes and other AI-generated content, discussed in Parts 8.3 and 9.3. A framework built primarily around conventional computer output and CCTV footage will face increasing strain as the distinction between authentic and synthetically generated material becomes harder to draw through ordinary examination, requiring continuous investment in detection capability rather than a fixed baseline of infrastructure.

10.4 Constitutional Readiness

Constitutional readiness measures whether digital-evidence practice remains consistent with privacy, proportionality and fair trial guarantees. The volume problem identified in Part 8.4 – a single device containing years of communications largely unconnected to an investigation – means that efficient evidence-gathering can come at the cost of disproportionate intrusion if not constrained by clear standards of necessity and proportionality. A justice system cannot be considered genuinely ready if technological efficiency is achieved at the expense of these safeguards.

10.5 A Qualified Answer

Taken together, these four indicators support a single, qualified conclusion: India is legally prepared but institutionally still developing. The BSA provides an important statutory foundation and the Supreme Court has shown a consistent capacity to adapt traditional evidentiary principles to new technology, most recently in *Pune Bar Association*⁵⁸. But legal readiness cannot substitute for the forensic infrastructure, trained personnel, standardised procedure and constitutional discipline that institutional and technological readiness require. The BSA should accordingly be treated not as the final stage of digital-evidence reform but as the foundation on which that broader institutional framework must still be built – the specific measures for doing so are set out in Part 11.

11. Suggestions and Reforms

⁵⁸ibid (n 5).

The following measures respond directly to the institutional, technological and constitutional gaps identified in Part 10, rather than restating the statutory framework already addressed in Parts 4 to 6.

- Standardised national protocols for the seizure, preservation, extraction and presentation of digital evidence, covering mobile phones, computers, CCTV footage, cloud-based records and social-media material, to reduce the inconsistency that produced the outcome in Sanap⁵⁹.
- Expansion of digital-forensic laboratory capacity beyond metropolitan centres, so that regional and state-level investigations are not delayed by concentrated forensic resources.
- Continuous, practical training for judges, prosecutors and investigators on metadata, hashing, forensic imaging, encryption, cloud evidence and AI-generated content – not to create technical specialists, but to ensure that technical evidence is neither accepted uncritically nor dismissed merely because it is complex.
- Clear institutional responsibility at each stage of the evidentiary chain – investigating agencies for preservation and documentation, forensic laboratories for technically sound examination, prosecutors for disclosure, and courts for independent evaluation of admissibility and weight.
- Transparent standards for expert qualification and methodology, so that courts can assess not only an expert's conclusion but the reliability of the process that produced it, addressing the concern raised in Part 9.2.
- Dedicated, continuously updated protocols for emerging evidentiary categories – deepfakes, blockchain records, Internet-of-Things data and encrypted communications – developed proactively rather than in response to individual disputes.
- Statutory or procedural safeguards limiting the retention and use of information extracted from a device to what is necessary and proportionate to the investigation, addressing the privacy concern identified in Part 10.4.

⁵⁹ibid (n 3).

- A periodic review mechanism, involving the judiciary, forensic experts, investigators and technologists, to keep the digital-evidence framework responsive to technological change without compromising authenticity, reliability and due process.

12. Conclusion

The enactment of the Bharatiya Sakshya Adhiniyam, 2023 confirms that Indian evidence law has moved decisively beyond treating digital material as an exceptional or marginal category. Sections 61 to 63 provide a coherent and, as *Pune Bar Association*⁶⁰ confirms, constitutionally sound framework for admitting electronic records, built on jurisprudence that runs consistently from *Anvar*⁶¹ through *Sanap*⁶² and *Pawar*⁶³.

Yet this article has argued that legal recognition is only one indicator of readiness, and not the one on which India's digital-evidence regime is currently weakest. Institutional capacity – forensic infrastructure, trained personnel and coordinated practice – remains uneven, as *Sanap*⁶⁴ starkly demonstrates; technological readiness must contend with a pace of change, from cloud computing to generative AI, that outstrips any fixed baseline of preparedness; and constitutional readiness requires that efficiency in evidence-gathering never come at the cost of proportionality and fair trial guarantees. The question for Indian courts is therefore no longer whether digital evidence has a place in the justice system – it clearly does – but whether the institutions responsible for handling that evidence can keep pace with the technology that generates it.

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⁶⁰ibid (n 5).

⁶¹ibid (n 1).

⁶²ibid (n 3).

⁶³ibid (n 4).

⁶⁴ibid (n 3).

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Anvar P.V. v P.K. Basheer, (2014) 10 SCC 473.

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